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1) Executive summary

Australia has a **federal, multi-level political finance system**. There is no single Australian campaign finance code. Instead, obligations vary by election type and jurisdiction. Core regulatory levers are:

- disclosure/reporting of donations and electoral expenditure
- caps on donations and/or expenditure (in some jurisdictions)
- source restrictions (especially foreign donations; and sectoral bans in some states)
- public funding mechanisms
- compliance/audit/enforcement powers.

As of this review date, a major national reform package (Electoral Reform Act 2025) is implementing significant Commonwealth changes from **1 July 2026**, including lower disclosure thresholds and faster disclosure in election periods.

2) Constitutional and institutional context

- **Commonwealth:** regulated primarily under the *Commonwealth Electoral Act 1918* (Part XX and related provisions), administered by the Australian Electoral Commission (AEC).
- **States/territories:** each has separate electoral finance statutes and regulators.
- **Local government:** usually regulated by **state/territory law**, either in the same funding/disclosure statute used for state elections or via dedicated local-government election legislation.

3) Commonwealth (federal) rules

3.1 Core law and administrator

- *Commonwealth Electoral Act 1918*.
- AEC Funding and Disclosure framework.

3.2 Key architecture

Historically, Commonwealth law has emphasized disclosure and public funding, with tighter controls added progressively (including foreign-donation controls and regulation of third-party political campaigners).

3.3 Current reform phase (critical)

AEC guidance states the *Electoral Legislation Amendment (Electoral Reform) Act 2025* is a major overhaul, with changes commencing from **1 July 2026**, including:

- lower disclosure threshold (AEC fact sheets indicate \$5,000, indexed after general elections)
- expedited/near-real-time donation disclosure during election periods
- revised annual/election return arrangements
- revised publication and compliance settings.

Because transitional arrangements and subordinate instruments matter, users should verify operative dates and instruments on the Federal Register and AEC reform pages before relying on a specific obligation.

4) State and territory frameworks

> Important: rules differ substantially, and some thresholds/caps are indexed or changed by periodic notices.

New South Wales (NSW)

- Primary law: *Electoral Funding Act 2018 (NSW)*.
- Features: donation caps, expenditure caps, disclosure framework, and application to state and local election participants under NSWs scheme.
- Regulator: NSW Electoral Commission.

Victoria (VIC)

- Primary law: *Electoral Act 2002 (Vic)* (Part 12 and related amendments).
- Features: caps/disclosure framework for state elections; foreign-donation restrictions; anti-avoidance provisions.
- Local-council donation regulation is administered separately (via local government integrity architecture), even though state-level rules are in the Electoral Act.
- Regulator: Victorian Electoral Commission (state-level disclosures).

Queensland (QLD)

- Primary laws: *Electoral Act 1992 (Qld)* and *Local Government Electoral Act 2011 (Qld)*.
- Features: disclosure regime for political donations/expenditure, donation caps, expenditure caps, and restrictions affecting certain donor classes.
- Regulator: Electoral Commission of Queensland.

Western Australia (WA)

- Primary law: *Electoral Act 1907 (WA)* (as amended, including 2023 reforms) plus regulations.
- Features: enhanced disclosure and political finance controls from July 2024 reforms, including foreign donation settings and spending/disclosure controls.
- Regulator: WA Electoral Commission.
- Local-government gift rules also operate under WA local-government election framework.

South Australia (SA)

- Primary law: *Electoral Act 1985 (SA)* (notably amended by the *Electoral (Accountability and Integrity) Amendment Act 2024*).
- Features: SA has moved to one of the strongest interventionist models, with broad donation prohibitions and tightly structured exceptions/controls (including treatment of new entrants and third parties under caps/reporting rules).

- Regulator: Electoral Commission of South Australia.

Tasmania (TAS)

- Primary law: *Electoral Disclosure and Funding Act 2023 (Tas)*.
- Features: modernized disclosure/funding framework for Tasmanian parliamentary elections.
- Regulator: Tasmanian Electoral Commission.

Australian Capital Territory (ACT)

- Primary law: *Electoral Act 1992 (ACT)*.
- Features: disclosure obligations, donation and expenditure controls, and explicit treatment of third-party campaigners.
- Regulator: Elections ACT.

Northern Territory (NT)

- Primary law: *Electoral Act 2004 (NT)*.
- Features: Part 10 framework for donations, expenditure and disclosure; reporting obligations for parties/candidates/donors and election-period controls.
- Regulator: Northern Territory Electoral Commission.

5) Local-government level

There is no uniform national local-government campaign finance code. In practice:

- NSW and QLD: local election participants are directly integrated into state electoral finance/disclosure systems.
- WA and others: local-government-specific gift/disclosure rules coexist with broader state electoral finance law.
- Victoria: local-council candidate donations involve separate administration pathways from state election disclosures.

****Practical implication:**** compliance must be mapped election-by-election (state lower house, upper house, council, mayoral, by-election), because definitions of gift, political donation, aggregation, return timing, and enforcement differ.

6) Major reforms over time (high-level timeline)

- ****1980s (Commonwealth):**** public funding and modern disclosure architecture introduced.
- ****2000s (Commonwealth):**** higher disclosure thresholds with indexation became a central controversy.
- ****2018 (Commonwealth):**** *Electoral Legislation Amendment (Electoral Funding and Disclosure Reform) Act 2018* tightened foreign-donation and third-party campaigner regulation.
- ****2023/2025 (states):**** substantial state-level redesigns (e.g., WA amendments effective 2024; SAs major 2024 amending Act effective from 2025 settings).
- ****2025/2026 (Commonwealth):**** *Electoral Reform Act 2025* rollout from 1 July 2026, including lower threshold and faster disclosure.

7) Key policy debates

1. ****Transparency timing:**** annual disclosure vs near-real-time reporting.
2. ****Donation caps vs free political communication:**** constitutional proportionality and implied freedom issues.
3. ****Third-party regulation:**** balancing anti-circumvention with civil society participation.
4. ****Foreign influence controls:**** broad consensus on restrictions, disagreement on scope and

enforcement burden.

5. **Public funding design:** anti-corruption and fairness benefits vs incumbent advantage concerns.
6. **National consistency vs federal diversity:** harmonisation could reduce compliance burden but may reduce state experimentation.
7. **Local government vulnerability:** planning/development decision interfaces drive stronger calls for tighter council-level donation controls.

8) Academic/policy research themes

Australian scholarship and policy analysis consistently examine:

- whether high thresholds and long lags reduce practical transparency
- how caps and bans alter party revenue models and campaign strategies
- constitutional litigation risk in design of caps/exemptions
- whether reforms reduce dark money and regulatory arbitrage across jurisdictions
- local-government integrity risks around property development and donor influence.

Useful recurring sources include Parliamentary Library quick guides, JSCEM inquiries/reviews, integrity body reports (e.g., anti-corruption inquiries at state level), and election regulator post-election disclosure/compliance reports.

9) Practical compliance checklist (for campaigns/advocacy groups)

1. Identify election type and jurisdiction first.
2. Determine whether you are a party, candidate, associated entity, third-party campaigner, donor, or publisher/broadcaster.
3. Check current indexed thresholds/caps for the relevant financial year.
4. Confirm whether federal purpose rules are triggered for mixed campaigns.
5. Maintain contemporaneous donation source verification and expenditure records.
6. Track annual, election-period, and expedited return deadlines separately.
7. Reconcile local-government-specific rules where applicable.
8. Obtain legal advice for cross-jurisdiction campaigns.

10) References (clickable)

Legislation / official regulators

- Commonwealth Electoral Act 1918 (Federal Register): <https://www.legislation.gov.au/C1918A00027>
- Electoral Legislation Amendment (Electoral Reform) Act 2025 (Federal Register search entry): <https://www.legislation.gov.au>
- AEC funding and disclosure reform hub: <https://www.aec.gov.au/FADReform/>
- AEC changes explained fact sheet: <https://www.aec.gov.au/FADReform/factsheets/changes-explained.htm>
- AEC disclosure overview: <https://www.aec.gov.au/FADReform/factsheets/disclosure-overview.htm>
- AEC financial disclosure portal/info: https://www.aec.gov.au/parties_and_representatives/financial_disclosure/
- NSW Electoral Funding Act 2018: <https://legislation.nsw.gov.au/view/html/inforce/current/act-2018-020>
- NSWEC funding/disclosure guidance: <https://elections.nsw.gov.au/about-us/legislation/funding-legislation/guidelines-under-the-electoral-funding-act-2018>
- Victoria Electoral Act 2002: <https://www.legislation.vic.gov.au/in-force/acts/electoral-act-2002>
- VEC political donations disclosures: <https://www.vec.vic.gov.au/disclosures/>

- Queensland Electoral Act 1992:
<https://www.legislation.qld.gov.au/view/html/inforce/current/act-1992-028>
- Queensland Local Government Electoral Act 2011:
<https://www.legislation.qld.gov.au/view/html/inforce/current/act-2011-031>
- ECQ disclosure guidance:
<https://www.ecq.qld.gov.au/donations-and-expenditure-disclosure/disclosure-of-political-donations-and-electoral-expenditure>
- WA Electoral Act 1907:
https://www.legislation.wa.gov.au/legislation/statutes.nsf/main_mrtitle_308_homepage.html
- WAEC electoral amendments 2023: <https://www.elections.wa.gov.au/electoralamendments2023>
- WA funding/disclosure guidelines:
https://www.elections.wa.gov.au/sites/default/files/content/documents/Funding_and_Disclosure_Guidelines.pdf
- SA Electoral Act 1985: <https://www.legislation.sa.gov.au/lz?path=%2Fc%2Fa%2Felectoral%20act%201985>
- ECSA funding/disclosure guides: <https://www.ecsa.sa.gov.au>
- Tasmania Electoral Disclosure and Funding Act 2023:
<https://www.legislation.tas.gov.au/view/html/inforce/current/act-2023-020>
- TEC political donations page:
<https://www.tec.tas.gov.au/disclosure-and-funding/political-donations/index.html>
- ACT Electoral Act 1992: <https://www.legislation.act.gov.au/a/1992-71>
- Elections ACT funding/disclosure obligations:
<https://www.elections.act.gov.au/funding-disclosures-and-registers/funding-and-disclosure-obligations>
- NT Electoral Act 2004: <https://legislation.nt.gov.au/en/Legislation/ELECTORAL-ACT-2004>
- NTEC compliance/disclosure: <https://ntec.nt.gov.au/financial-disclosure/compliance>

Parliamentary and policy references

- Parliamentary Library quick guide (jurisdictional comparison):
https://www.aph.gov.au/About_Parliament/Parliamentary_departments/Parliamentary_Library/Research/Quick_Guides/2022-23/ElectionFundingAndDisclosure2022Update
- JSCEM review of 2018 Commonwealth reforms:
https://www.aph.gov.au/Parliamentary_Business/Committees/Joint/Electoral_Matters/Operationandimpact